CONFIDENTIALITY AND DATA HANDLING UNDERTAKING

Reference: DEMO-NDA-006 **Date:** 2 November 2026
Disclosing Party: Procurement Technology Office (Demo Entity)
Receiving Party: Zeta Analytics Services (Demo Entity)

1. Purpose. The Receiving Party may access limited procurement records solely to configure and demonstrate a document management prototype for the Disclosing Party.

2. Confidential Information. Confidential Information includes non-public tender documents, pricing, personal information, system credentials, internal correspondence and business processes disclosed in any form. Information independently developed without use of the disclosed material is excluded.

3. Use and Protection. The Receiving Party shall use Confidential Information only for the Purpose, restrict access to personnel with a need to know, apply reasonable security safeguards and promptly notify the Disclosing Party of any suspected unauthorised access or disclosure.

4. Prohibited Actions. The Receiving Party shall not sell, publish or disclose Confidential Information to third parties, attempt to re-identify anonymised records, or use the information to train a public or third-party machine learning model without prior written consent.

5. Subcontractors. No subcontractor may access Confidential Information without prior written approval. The Receiving Party remains responsible for acts and omissions of approved subcontractors in connection with this Undertaking.

6. Return and Deletion. Within 15 days after completion of the Purpose or written request, the Receiving Party shall return or securely delete Confidential Information, except for copies required to be retained by law. Any retained copy remains subject to this Undertaking.

7. Term. This Undertaking begins on the date above and continues for two years. Confidentiality obligations for trade secrets and personal information continue for as long as the information remains protected under applicable law.

8. Incident Cooperation. The Receiving Party shall preserve relevant records, cooperate with reasonable investigation requests and provide a written incident summary within 48 hours after becoming aware of a suspected incident.

9. Remedies. The parties acknowledge that unauthorised disclosure may cause harm. Either party may seek remedies available under applicable law. No clause in this Undertaking limits remedies that cannot lawfully be excluded.

10. Governing Law. This Undertaking is governed by the laws of India. Courts at Mumbai shall have jurisdiction.

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